

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF STALIN AND OTHERS v. RUSSIA

(Applications nos. 2825/21 and 31 others –
see appended list)

JUDGMENT

STRASBOURG

14 December 2023

This judgment is final but it may be subject to editorial revision.



In the case of Stalin and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 23 November 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-67, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the

absence of a prosecuting party in the proceedings under the Code of Administrative Offences (CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under the Convention or Protocols to it. In view of the findings in paragraphs 11 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 December 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros) [1]
1.	2825/21 05/12/2020	**Damir Islamovich STALIN** 1970	Peredruk Aleksandr Dmitriyevich St Petersburg	Political rally Samara, 21/06/2020 Rally to support A. Navalnyy Samara, 23/01/2021	article 20.2 § 2 of CAO article 20.2 § 5 of CAO	5 days of detention (quashed on appeal) 15 hours of community work	Samara Regional Court 30/06/2020 Samara Regional Court 15/04/2021	Art. 5 (1) - unlawful detention - (i) delay of more than a few hours in releasing the applicant (after the appeal decision of 30/06/2020 by Samara Regional Court, quashing his sentence to 5-day detention, he was released on 01/07/2020); (ii) on 05/02/2021 escorting to a police station for compiling an offence report in relation to the rally on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings in 2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - lack of suspensive effect of an appeal against the sentence of detention in 2020.	5,000
2.	20302/21 14/03/2021	**Denis Vasilyevich GRUBENKO** 1989	Vasin Vladimir Valeryevich Krasnoyarsk	Rally to support S. Furgal Krasnoyarsk, 01/08/2020 Rally to support A. Navalnyy Krasnoyarsk, 21/04/2021	article 20.2 § 5 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 3 days of detention	Krasnoyarsk Regional Court 24/09/2020 Krasnoyarsk Regional Court 17/06/2021	Art. 5 (1) - unlawful detention - on 21/04/2021 and 23-24/04/2021 escorting to and detention in a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - lack of suspensive effect of an appeal against the sentence of detention.	5,000

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3.	21107/21 05/04/2021	**Vladimir Ivanovich CHERNYSHEV** 1966	Sokolov Yevgeniy Vladislavovich Belgorod	Rally to support A. Navalnyy Belgorod, 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Belgorod Regional Court 22/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
4.	29390/21 11/05/2021	**Vitaliy Mikhaylovich GUREYEV** 2002	Aksenova Darya Dmitriyevna Kolomna	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	12 days of detention	Moscow City Court 12/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021 - 01/02/2021 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
5.	29391/21 11/05/2021	**Nikita Aleksandrovich BUDKIN** 1990	Aksenova Darya Dmitriyevna Kolomna	Rally to support A. Navalnyy Moscow, 23/01/2021	article 20.2 § 6.1 of CAO	10 days of detention	Moscow City Court 22/03/2021	Art. 5 (1) - unlawful detention - on 30/01/2021- 01/02/2021 escorting to and detention in a police station for and after compiling an offence report in relation to the rally on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
6.	29604/21 11/05/2021	**Anna Arkadyevna KHORT** 2002	Aksenova Darya Dmitriyevna Kolomna	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	15 days of detention	Moscow City Court 09/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021 escorting to and detention in a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
7.	31685/21 07/06/2021	**Anna Gennadyevna SHCHEBET** 1980	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Bryansk, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Bryansk Regional Court 10/03/2021	Art. 5 (1) - unlawful detention - on 31/01/2021 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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8.	33900/21 03/06/2021	**Sergey Aleksandrovich KAN** 1986	Glukhov Aleksey Vladimirovich Novocheboksarsk	Rally to support A. Navalnyy Cheboksary, 23/01/2021 Anticorruption rally Cheboksary, 21/04/2021	article 20.2 § 5 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 5 days of detention	Supreme Court of the Chuvashia Republic 19/02/2021 Supreme Court of the Chuvashia Republic 30/04/2021	Art. 5 (1) - unlawful detention - on 30/01/2021 escorting to a police station for compiling an offence report in relation to the rally on 23/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - lack of suspensive effect of an appeal against the sentence of detention.	5,000
9.	34698/21 18/06/2021	**Mariya Aleksandrovna YURCHENKO** 1998	Peredruk Aleksandr Dmitriyevich St Petersburg	Rally against amendments to the Constitution St Petersburg, 15/03/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 22/12/2020	Art. 5 (1) - unlawful detention - on 15/03/2020 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
10.	34898/21 03/06/2021	**Sergey Aleksandrovich CHEREDNIK** 1980	Aksenova Darya Dmitriyevna Kolomna	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	14 days of detention	Moscow City Court 12/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021-01/02/2021 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
11.	35155/21 25/06/2021	**Dmitriy Alekseyevich SMIRNOV** 1992	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Moscow, 17/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 02/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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12.	35158/21 25/06/2021	**Artem Nikolayevich LAPIN** 1983	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 11/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
13.	35189/21 18/06/2021	**Andrey Vladimirovich BORTNIKOV** 1997	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	8 days of detention	Moscow City Court 08/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021-01/02/2021 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - lack of a suspensive effect of an appeal against the sentence of detention.	5,000
14.	35191/21 18/06/2021	**Aleksandra Aleksandrovna KLYUKA** 1995	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 20/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
15.	35192/21 18/06/2021	**Artem Sergeyevich MARTIROSOV** 1999	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Moscow, 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 30/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
16.	36361/21 30/06/2021	**Andrey Viktorovich DRUZHININ** 1987	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Moscow, 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 26/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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17.	36372/21 30/06/2021	**Tatyana Andreyevna MASLOVA** 1991	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Tyumen, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Tyumen Regional Court 15/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
18.	36390/21 30/06/2021	**Nikolay Igorevich IVANOV** 1992	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
19.	36732/21 07/07/2021	**Rostislav Vladimirovich NEKENOV** 1987	Bochilo Anna Yevgenyevna Barnaul	Protest action Moscow, 07/11/2020	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 22/04/2021	Art. 5 (1) - unlawful detention - on 07/11/2020 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
20.	36767/21 13/07/2021	**Yekarerina Aleksandrovna PONOMAREVA** 1996	Markin Konstantin Aleksandrovich Velikiy Novgorod	Rally to support A. Navalnyy Novgorod, 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Novgorod Regional Court 25/02/2021	Art. 5 (1) - unlawful detention - on 23/01/2021 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
21.	36884/21 12/07/2021	**Mikhail Mikhaylovich DEYEV** 1998	Pershakova Yelena Yuryevna Moscow	Rally to support A. Navalnyy Moscow, 02/02/2021	article 20.2 § 6.1 of CAO	15 days of detention	Moscow City Court 11/02/2021	Art. 5 (1) - unlawful detention - on 03/02/2021 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - lack of suspensive effect of an appeal against the sentence of detention.	5,000

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22.	36929/21 16/07/2021	**Fedor Gennadyevich PARSHIKOV** 2002	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	8 days of detention	Moscow City Court 08/04/2021	Art. 5 (1) - unlawful detention - on 31/01/2021-01/02/2021 detention in a police station after the compiling of the offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - lack of suspensive effect of an appeal against the sentence of detention.	5,000
23.	37333/21 08/07/2021	**Yevgeniy Gennadyevich KALKAYEV** 1977	Aksenova Darya Dmitriyevna Kolomna	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	10 days of detention	Moscow City Court 22/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
24.	37815/21 12/07/2021	**Andrey Viktorovich NAZAROV** 1992	Pershakova Yelena Yuryevna Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	15 days of detention	Moscow City Court 05/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - lack of suspensive effect of an appeal against the sentence of detention.	5,000
25.	38199/21 13/07/2021	**Maksim Vladimirovich YEVSIN** 1992	Zatonskaya Yuliya Vladimirovna Lipetsk	Rally to support A. Navalnyy Lipetsk, 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Lipetsk Regional Court 25/02/2021	Art. 5 (1) - unlawful detention - on 23/01/2021 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
26.	38403/21 02/07/2021	**Dmitriy Sergeyevich VOLKOV** 1986	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Pskov, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Pskov Regional Court 26/04/2021	Art. 5 (1) - unlawful detention - on 31/01/2021 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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27.	38547/21 24/07/2021	**Vladimir Sergeyevich NEMANOV** 1996	Petrova Polina Artemovna Moscow	Rally to support A. Navalnyy Moscow, 31/01/2021	article 20.2 § 6.1 of CAO	10 days of detention	Moscow City Court 04/02/2021	Art. 5 (1) - unlawful detention - on 31/01/2021-01/02/2021 detention in a police station after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000
28.	38986/21 22/07/2021	**Oleg Valeryevich IVANOV** 1997	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Stavropol, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Stavropol Regional Court 28/04/2021	Art. 5 (1) - unlawful detention - on 31/01/2021 escorting to a police station for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
29.	39153/21 19/07/2021	**Sergey Petrovich SEROV** 1997	Bochilo Anna Yevgenyevna Barnaul	Rally to support A. Navalnyy Kazan, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 12/05/2021	Art. 5 (1) - unlawful detention - on 31/01/2021 escorting to a police station for compiling an offence report.	4,000
30.	39215/21 28/07/2021	**Guzel Salavatovna VASIKOVA** 1992	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Kazan, 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 31/03/2021	Art. 5 (1) - unlawful detention - on 31/01/2021-01/02/2021 escorting to and detention in a police station for and after compiling an offence report.	4,000
31.	39345/21 22/07/2021	**Igor Svyatoslavovich SHAPOVALOV** 1991	Memorial Human Rights Centre Moscow	Rally to support A. Navalnyy Moscow, 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 19/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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32.	46922/21 30/08/2021	**Aleksandr Nikolayevich ZHELTUKHIN** 1986	Bannikov Ruslan Yuryevich Voronezh	Rally to support A. Navalnyy Voronezh, 23/01/2021	article 20.2 § 2 of CAO	7 days of detention	Voronezh Regional Court 10/03/2021	Art. 5 (1) - unlawful detention - on 23/01/2021 escorting to and detention in a police station for and after compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceeding.	5,000

[1] Plus any tax that may be chargeable to the applicants.